

Court No. - 32

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Vineet Saran,J.

Hon'ble Ashok Srivastava,J.

The case of the petitioner is that the petitioner being a consumer of HV-2 category, no minimum charges could be levied. The charges now being levied are stated to be demand charges which is under the garb of minimum charges which cannot be levied in the category of consumer, as the petitioner is. It is further stated that the demand charges has been defined under Clause 2.2 (U) of the Electricity Supply Code, 2005 which is a charge levied on the consumer based on the maximum demand. The submission of the learned counsel for the petitioner is that the demand charge is being levied for the period with the electricity connection of the petitioner was disconnected, and as such neither a demand charge can be levied nor the minimum charge under the garb of demand charge can be realised from the petitioner.

Sri Pankaj Shukla, learned counsel for the respondents, prays for and is granted time to seek instructions or file counter affidavit.

Put up on 1.3.2011 in the additional cause list. Till then, the electricity connection of the petitioner shall not be disconnected on account of non payment of demand charges as raised in the bills dated 4.1.2011 and 2.2.2011 provided the petitioner continues to pay regular electricity consumption bills.

Order Date :- 17.2.2011

dps

(Ashok Srivastava,J)

(Vineet Saran, J)

Chief Justice's Court

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

Put up on Thursday, i.e. 03.03.2011. Interim order will continue till then.

(Vineet Saran, J.) (F.I. Rebello, C.J.)

Order Date :- 1.3.2011

AHA

Chief Justice's Court

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

Put up tomorrow, i.e. 04.03.2011.

Interim order granted on 17.02.2011 will continue till then.

(Vineet Saran, J.) (F.I. Rebello, C.J.)

Order Date :- 3.3.2011

AHA

Chief Justice's Court

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Ferdino Inacio Rebello, Chief Justice

Hon'ble Vineet Saran, J.

Place the matter on Board on 10.3.2011 in the additional cause list.

Order Date :- 4.3.2011

aBHIShEk

(Vineet Saran, J.)

(F.I. Rebello, C.J.)

Court No. - 3

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

For order, see order of date passed on Civil Misc. Writ Petition
No. 11525 of 2011.

Order Date :- 15.3.2011

Sandeep

Court No. - 21

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

As jointly prayed, list on 23rd February, 2012 in the additional cause list.

Order Date :- 14.2.2012

Atul kr. sri.

Court No. - 21

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

List on 14.3.2012 in the additional cause list.

Order Date :- 23.2.2012

P.P.

Court No. - 9

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble Yatindra Singh,J.

Hon'ble B. Amit Sthalekar,J.

On the request of counsel for the petitioner list this case in the next cause list.

Order Date :- 14.3.2012

o.k.

Court No. - 21

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble R.K. Agrawal,J.

Hon'ble Vinay Kumar Mathur,J.

Put up tomorrow.

Order Date :- 21.3.2012

V.Sri/-

Court No. - 21

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble R.K. Agrawal,J.

Hon'ble Vinay Kumar Mathur,J.

On the joint request, put up on 26.3.2012.

Order Date :- 22.3.2012

T. Sinha

Court No. - 21

Case :- WRIT - C No. - 9318 of 2011

Petitioner :- M/S Shree Gopala Iron (India) Ltd. And Another

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kumar Shukla,S.C.

Hon'ble R.K. Agrawal,J.

Hon'ble Vinay Kumar Mathur,J.

Heard Sri Mayank Agrawal and Sri B.C. Rai, learned counsel for the petitioner and Sri Pankaj Kumar Shukla, learned counsel appearing for the respondent. Order is reserved. Order on 4th April, 2012.

Order Date :- 26.3.2012

mt

Reserved

Civil Misc. Writ Petition No.9318 of 2011

M/s. Shree Gopala Iron (India) Ltd. And another vs. Paschimanchal Vidyut Vitran Nigam Ltd. And others.

With

Civil Misc. Writ Petition No.45121 of 2009

M/s.Maruti Nandan Steels Pvt. Ltd. vs. Paschimanchal Vidyut Vitran Nigam Ltd. And another.

With

Civil Misc. Writ Petition No.11525 of 2011

M/s. Sunita Ispat (P) Ltd. And another vs. PVNL and another.

With

Civil Misc. Writ Petition No.12476 of 2011

M/s. Mohit Paper Mills Ltd. And another vs. PVNL and another.

With

Civil Misc. Writ Petition No.56946 of 2011

M/s. Dasna Steels Pvt. Ltd. And another vs. Paschimanchal Vidyut Vitran Nigam Ltd. And another.

And with

Civil Misc. Writ Petition No.11863 of 2012

M/s. Rana Girders Ltd. vs. State of U.P. and others.

Hon'ble R.K. Agrawal, J.

Hon'le Vinay Kumar Mathur, J.

(Delivered by R.K.Agrawal, J.)

Civil Misc. Writ Petition No.45121 of 2009 has been filed by M/s. Maruti Nandan Steels Pvt. Ltd. seeking a writ, order or direction in the nature of certiorari quashing the revised bill dated 6th February, 2009 bearing serial No.815 amounting to Rs.14,28,358/-, filed as Annexure no.10 to the writ petition and also quashing the bill dated 10th September, 2008 to the extent of demand charges only for 15 days and bill dated 4.11.2009. A further writ of mandamus has been sought for directing the respondents to adjust the excess amount realised by them amounting to Rs.11,25,000/- consequent to bill dated 10th September, 2008 and 4th November, 2008 in future consumption bills and other consequential reliefs.

Civil Misc. Writ Petition No.9318 of 2011 has been filed by M/s.Shree Gopala Iron (India) Pvt. Limited through its Director Sri Deepak Goyal and Shri Deepak

Goyal in his individual capacity seeking a writ, order or direction in the nature of certiorari quashing the bills dated 4.1.2011 and 02.02.2011 to the extent of Clause no.1 only i.e. the demand charge during the period of temporary disconnection of supply of electricity i.e. from 30.11.2010 to 25.01.2011 and for restraining the respondents from adopting any coercive measure pursuant to the impugned demand.

Civil Misc. Writ Petition No.11525 of 2011 has been filed by M/s.Sunita Ispat (Pvt.) Limited through its Director Saurabh Agarwal and Sri Saurabh Agarwal in his individual capacity seeking appropriate writ, order or direction declaring that levy of demand charge for the period electricity supply remained disconnected is absolutely without jurisdiction and beyond the scope of Section 45 of the Indian Electricity Act, 2003, hereinafter referred to as “the Act”, and to quash the communication dated 05.02.2011 along with undated bill, filed as Anneuxre no.21 to the writ petition and to adjust the amount, if any, deposited by the petitioner-company after adjusting electricity dues payable by it in accordance with law. A further writ, order or direction in the nature of certiorari has been sought for quashing the order dated 30.3.2011 passed by the Divisional Engineer, respondent no.2, filed as Annexure no.19 to the writ petition and other consequential reliefs.

Civil Misc. Writ Petition No.12476 of 2011 has been filed by M/s. Mohit Paper Mills Limited through its Director Sri Sandeep Jain and Sri Sandeep Jain in his individual capacity seeking appropriate writ, order or direction declaring that levy of demand charge at the rate specified in the tariff for the period electricity supply remained disconnected is absolutely without jurisdiction and beyond the scope of Section 45 of Act and to quash the entire electricity bills raised on the basis of demand charge from February, 2010 to January, 2011 and the Executive Engineer be directed to prepare electricity bills accordingly and the amount, if any, deposited by it after adjusting the electricity dues admissible and payable by it in accordance with law.

Civil Misc. Writ Petition No.56946 of 2011 has been filed by M/s. Dasna Steels Pvt. Ltd. through its Authorised Representative Sri Riyaz Ahamad and Sri Riyaz Ahamad in his personal capacity seeking a writ, order or direction in the nature of certiorari quashing the undated bill for the month of August, 2011, filed as Annexure no.4 to the writ petition to the extent of imposition of demand charges only amounting to Rs.3,30,000/- during the period of temporary disconnection done on 13th July, 2011 and restraining the respondents from adopting any coercive measure pursuant to the

impugned demand.

Civil Misc. Writ Petition No.11863 of 2012 has been filed by M/s. Rana Girders Limited through its director Sri Zakir Ali Rana seeking appropriate writ, order or direction declaring that levy of billable demand @ 75% of the contracted load/demand at the rate specified in the tariff for the period electricity supply is disconnected is absolutely without jurisdiction and beyond the scope of Section 45 of the Act and to quash the bills dated 01.02.2012, 30.12.2011, 30.11.2011, 11.11.2011 and 01.10.2011, filed as Annexure nos. 2 to 4 to the writ petition in so far as it relates to the demand charges and restraining the respondents from demanding billable demand charges through the aforesaid bills.

In all these cases the only question raised by the petitioners is regarding the action of Paschimanchal Vidyut Vitran Nigam Limited, hereinafter referred to as 'the Nigam' to bill and demand electricity charges for the period during which electricity connection was temporarily disconnected.

Civil Misc. Writ Petition No.9318 of 2011 is being treated as the leading writ petition and its facts are being given.

The petitioner herein is a private limited company and is running an induction furnace. It has contracted a load of 5250 KVA. The tariff applicable is of HV-2 category. The energy charge is on the basis of TOD metering and demand charge of electricity supply to a unit. A bill for the month of 2nd November, 2010 was raised upon the petitioners, which has been paid in full. Thereafter a bill dated 1st December, 2010 for the period 2nd November, 2010 to 21st November, 2010 amounting to Rs.51,50,050/- was raised upon the petitioners. The petitioners paid a sum of Rs.31.00 lacs immediately and the balance amount of Rs.20,50,050/- was paid by cheque on 25th January, 2011 which was encashed on 10th February, 2011. As there was a delay in payment of Rs.20,50,050/- the supply of electricity to the petitioner unit was disconnected on 30th November, 2010 for non payment. After 30th November, 2010 there was no registration of any demand by the meter installed in the factory's premises of the petitioners nor any electricity was consumed by it. After encashment of the cheque of Rs.20,50,050/- the supply of electricity was resumed. A bill dated 4th January, 2011 for an amount of Rs.60,95,551/- was raised upon the petitioners. Another bill dated 2nd February, 2011 amounting to Rs.40,18,069/- was also raised upon the petitioners. The aforesaid two bills included the demand charges during the

period when the electricity supply was temporarily disconnected. i.e. 30.11.2010 to 25.1.2011. The demand of electricity charges for the period 30.11.2010 to 25.1.2011 when the electricity supply was temporarily disconnected is under challenge in the present writ petition on the ground that in the Tariff Order 2006-07 the minimum consumption guarantee charges have been done away by the U.P. Electricity Regulatory Commission, Lucknow, hereinafter referred to as the “UPERC” and the Nigam is not authorised nor can demand electricity charges for the period during which the electricity line and power supply was temporarily disconnected.

In the counter affidavit filed by Sri A.K. Singh, Executive Engineer, Paschimanchal Vidyut Vitran Nigam Limited demand of electricity charges for the period during which the electricity supply has been temporarily disconnected has been justified on the ground that under the Tariff Order for Financial Year 2006-07 a specific provision was made for billable demand which provided that bill demand during a month shall be actual maximum demand as indicated by TVM/TOD Meter or 75% of the contracted load, whichever is higher.

In the rejoinder affidavit filed by the petitioners the plea made in the writ petition has been reiterated.

We have heard Sri Mayank Agrawal and Sri B.C. Rai, learned counsel appearing for the petitioners and Sri Pankaj Kumar Shukla, learned counsel for the respondents.

Sri Mayank Agrawal, learned counsel, submitted that prior to 2006-07 the respondents were levying three types of charges, namely, demand charges, energy charges and minimum charges whereas after 2006-7 when the UPERC fixed the new rate schedule and had abolished minimum charges for HV-2 category consumers and, therefore, only the demand charges and energy charges are leviable and, therefore, the bills raised by the respondents during which there had been no electricity consumption on the basis of 75% of the contracted load is nothing else but levying minimum consumption charges which they could not have done. In support of his aforesaid plea he has relied upon the following decisions:

1. **L.M.L. Ltd. vs. State of U.P. and others**, 2001(2) AWC 1472.
2. **BSES Ltd. vs. Tata Power Co.Ltd. and others**, (2004) 1SCC 195.
3. **Deepak Sharma vs. State of U.P. and others**, 2005(4) AWC 3806.
4. **Oswal Woollen Mills Ltd. vs. Punjab State Electricity Board and another**, 2007(1) AWC 294 (SC)

5. **Badri Kedar Paper Private Limited vs. Uttar Pradesh Electricity Regulatory Commission and others**, (2009) 3 SCC 754.
6. **Noida Entrepreneurs Association vs. NOIDA and others**, (2011) 6 SCC 508.
7. **Sanchit Bansal and another vs. Joint Administration Board and others**, (2012) 1 SCC 157.

Sri B.C. Rai, learned counsel submitted that under Regulation 4.37 of the U.P. Electricity Supply Code, 2005, hereinafter referred to as “the Code”, a specific provision has been made for realisation of electricity charges for the period during which the electricity supply has been temporarily disconnected. It has to be in accordance with the tariff which is applicable and there is no provision for demanding minimum consumption charges, the authorities were not at all entitled to bill the demand for electricity on the basis of 75% of the contracted load during the period for which electricity supply has been temporarily disconnected.

Sri Pankaj Kumar Shukla, learned counsel, raised a preliminary objection and submitted that the petitioners have adequate alternative remedy by way of preferring a complaint before the Consumer Grievance Redressal Forum under the provisions of U.P. Electricity Regulatory Commissioner (Consumer Grievance Redressal Forum & Electricity Ombudsman Regulations, 2007, and, therefore, the writ petition should be dismissed on this ground alone. On merits he submitted that even though the UPERC has abolished minimum consumption charges or the minimum charges in the tariff applicable for the year 2006-07 for HV-2 category consumers yet as there is provisions for raising billable demand on the actual consumption or 75% of the contracted load, whichever is more, the bills raised against all the petitioners on the basis of 75% of contracted load during which the electricity supply has remained temporarily disconnected is perfectly justified.

Sri Mayank Agrawal, learned counsel, submitted that the alternative remedy is not a absolute bar and as the demand raised by the Nigam runs into several lacs of rupees it is onerous and oppressive and moreover, the question of jurisdiction to raise the bill is also involved in the present writ petition, therefore, this Court should not decline to entertain the writ petition only on the ground of alternative remedy being available. He further submitted that as the affidavits have been exchanged between the parties this Court should exercise its jurisdiction to decide the entire controversy for all times to come.

He further submitted that as the demand has been raised without giving any show cause notice and is wholly arbitrary and in violation of the principles of equity, fair play and natural justice, therefore, the writ petition is fully maintainable. In support of his aforesaid plea he has relied upon the following decisions:

1. **J.M. Baksi & Co., Gujarat vs. Commissioner of Customs, New Kandla and another**, (2001) 9 SCC 275.
2. **M.G. Abrol, Additional Collector of Customs, Bombay and another**, AIR 1966 SC 197.
3. **Dr. Bal Krishna Agarwal vs. State of U.P. and others**, (1995) 1 SCC 614.
4. **Whirlpool Corporation vs. Registrar of Trade Marks, Mumbai and others**, (1998) 8 SCC 1.
5. **Harbanslal Sahnia and another vs. Indian Oil Corpn. Ltd. And others**, (2003) 2 SCC 107.
6. **ABL International Ltd. And another vs. Export Credit Guarantee Corporation of India Ltd. And others**, (2004) 3 SCC 553.
7. **Sanjana M. Wig(Ms) vs. Hindustan Petroleum Corpn. Ltd.**, (2005) 8 SCC 242.
8. **Popcorn Entertainment and another vs. City Industrial Development Corpn. And another**, (2007) 9 SCC 593.
9. **Ashok Kumar and others vs. State of U.P. and others**, 2008(60 ADJ 660(DB).
10. **State of H.P. And others vs. Gujarat Ambuja Cement Ltd. and another**, (2005) 6 SCC 499.
11. **Pradeep Kumar Singh vs. U.P. State Sugar Corporation and another**, (2002) 1 UPLBEC 705.

Sri B.C. Rai, learned counsel submitted that UPERC(Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007, hereinafter referred to as “the Regulations”, have been framed by the UPERC for redressal of grievances of the consumers as provided in Section 42(5) of the Act. Regulation 2 (n) of the Regulations so framed defines “grievance” in restricted manner and covers only the failure of the Distribution Licensee to provide the specified or agreed electricity service, giving rise to a complaint. The complaint regarding wrong billing or the excess billing would not fall within the “grievance” as defined under the said Regulation and, therefore, the Forum would have no jurisdiction to entertain and decide the dispute.

We have given our thoughtful consideration to the various plea raised by the learned counsel for the parties. Taking up the preliminary objection raised by Sri Pankaj Kumar Shukla, learned counsel for the respondents regarding availability of

alternative remedy first, we find that Section 42(5) of the Act provides for establishment of forum for redressal of grievances of the consumers in accordance with the guidelines as may be specified by the State Commission. Section 181 of the Act gives powers to the State Commission to make regulations. Clause (r) of the sub-section (2) of Section 181 empowers the State Commission to frame guidelines under sub-section (5) of Section 42 of the Act.

In exercise of the powers conferred by Section 181 read with sub-section (5) of Section 42 of the Act, UPERC has framed the Regulations. Regulation 2(e) defines “complaint”. It reads as follows:

“(e) '**Complaint**' means any allegation in writing made by a complainant or his authorized representative regarding any consumer grievance arising in relation to-

- (i) any defect or deficiency in electricity supply or service by a licensee, including non-conformity with the applicable performance standards specified in the Electricity Supply Code;
- (ii) billing including charging for the electricity supplied or services mentioned in the complaint, a price in excess of the price fixed by the Commission in tariff order or otherwise;
- (iii) offering electricity services, to the public which will be hazardous to life and safety when availed, in contravention of the provisions of the Act, rules made thereunder, Electricity Supply Code or any other law;
- (iv) violation of any provision of the Act, the rules or regulations made there under or license requiring the licensee to display the information in regard to the manner or effect of use of the electrical services;
- (v) breach of any obligation, made under the act, the Electricity Supply Code tariff order, provisions relating to safety and electricity supply, meter, disconnection, realization of dues, by the licensee which adversely affects any consumer or which the Forum may consider appropriate to be treated as a complaint;”

Clause (f) of the Regulation 2 defines “consumer” as follows:

“(f) '**consumer**' means any person who is supplied with electricity for his own use by a licensee or the Government or by any other person engaged in the business of supplying electricity to the public under the Act or any other law for time being in force, and includes any person whose premises are for the time being connected for the purpose of receiving electricity with the works of a licensee, Government or any other person, as the case may be;”

Clause (n) of Regulation 2 defines “grievance” as follows:

“(n) '**grievance**' in relation to the consumer means failure of the Distribution Licensee to provide the specified or agreed electricity service, giving rise to a complaint.”

Regulation 5.2 gives the Forum jurisdiction to take up complaint except those under Regulation 5.1, on an application before it or suo motu if it considers appropriate in the interest of justice. Regulation 5 is reproduced below:

“5.0 Jurisdiction of the Forum--

- 5.1 The Forum shall not entertain a complaint, if it pertains to matters mentioned in Section 126, 127, 128, 135 to 139, 143, 152 and 161 of the Electricity Act, 03.
- 5.2 The Forum shall have the jurisdiction to take up complaints, except those under Regulation 5.1, on an application before it or suo-motu if it considers appropriate in the interest of justice.
- 5.3 The Forum shall not entertain a complaint, if it pertains to the same subject matter for which any proceedings before any court, authority or any other Forum is pending or a decree, award or a final order has already been passed by any competent court, authority or Forum.”

Regulation 6 prescribes the procedure before the Forum. It has been given the powers to pass interim order also and the matter has to be decided expeditiously after following the principles of natural justice. Regulation 6 is reproduced below:

6.0 Procedure before the Forum-

- 6.1 The designated staff of the Forum shall-
 - (i) receive Complaints and issue acknowledgement;
 - (ii) maintain records;
 - (iii) post the matter/complaint for hearing as per direction of the Forum.
 - (iv) function as decided by the Forum.
- 6.2 Every complaint to the Forum must be submitted in writing and shall contain the following particulars;
 - (i) Name of the individual or the organization, postal address, service connection number, tariff category, telephone number, fax number and the E-mail address(if any) of the complainant;
 - (ii) Name of the Distributor Licensee and its office to which complaint pertains;
 - (iii) Full facts of the matter supported by self-attested copies of relevant documents;
 - (iv) the relief prayed for;
 - (v) a statement that the matter is not pending before any court, authority or Forum;
 - (vi) a copy of response, if any, or order of the licensee; and
 - (vii) any other matter considered relevant.
- 6.3 Complaint shall be accompanied by fees of Rs.50/- through Indian postal order or demand draft or banker's cheque payable to Forum or any other instrument specified by the Forum.
- 6.4 The Forum shall determine the admissibility of the Complaint not later than seven working days from the date of receipt of the complaint. No complaint shall be rejected unless an opportunity of hearing is provided to the

complainant except matters related to Regulation-5.1.

6.5 After admission, the Forum shall proceed to adjudicate upon the complaint in the matter provided in these Regulations.

6.6 The Forum shall cause a copy of the Complaint served on the concerned Distribution Licensee directing it to submit, in writing, its reply with a copy of such reply directly to the complainant within two weeks or such extended period, not exceeding three weeks, as may be granted by the Forum. The complainant shall file a counter reply, if any, to the reply of the Distribution Licensee within next one week with a copy to such licensee.

6.7 If the Distribution Licensee fails to respond within the time given by the Forum or fails to appear before the Forum through an authorized representative, the Forum may proceed to hear and dispose of the matter ex-parte on the basis of the documents and any other evidence on record or pass such order as may be considered proper in the interest of justice.

6.8 If the Complainant does not appear on the date of hearing before the Forum, the Forum may dispose it of on the basis of the documents on record or pass such order as may be considered proper in the interest of justice.

6.9 (i) Every Complaint shall be heard as expeditiously as possible. The Forum shall adjudicate upon a Complaint by a speaking order at the earliest but preferably within three months from the date of receipt of complaint by the Forum.

(ii) In the event of Complaint being not disposed of within the period, the Forum shall record in writing reasons for the same, the complainant may also approach the Ombudsman.

6.10 (i) The Forum may pass such interim orders, as it may consider necessary, pending final disposal of the complaint;

Provided that, save in exceptional circumstances, the interim relief shall not be allowed for a period of more than three months;

Provided further that in case of dispute in regard to bill, the interim relief shall not be granted unless the complainant deposits with the authority/office/officer, with whom the amount has to be deposited, an amount at the following rates or at such rates as may be revised by the Commission by an Order:

(a) Rs.1000 per KW for sanctioned loads upto 5 KW.

(b) Rs.5000/= plus Rs.2000/= per KW for each additional KW of sanctioned load above 5 KW to 25 KW, and

(c) Rs.45000/= plus Rs.2500 per KW for each additional KW of sanctioned load above 25 KW.

or an amount to the extent of fifty per cent of the impugned demand, whichever is less;

Provided also that the application seeking interim relief shall be disposed of within three working days after receipt of the complaint.

(ii) the supply of the consumer shall not be disconnected and, if disconnected, shall be reconnected within 24 hours if he has deposited the amount directed by the Forum.

6.11 The Forum shall not grant more than one adjournment unless sufficient cause is shown and the reasons for grant of adjournment shall be recorded in writing by the Forum. In such case, the party seeking adjournment shall

pay other party a sum of Rs.100/- as compensation for the hardship caused due to adjournment of the case.”

Regulation 7 of the Regulations makes provision for decision of the Forum, which reads as follows:

7.0 Decision of the Forum-

7.1 (a) The decision of the Forum shall be

- (i) In writing;
- (ii) supporting by reasons and
- (iii) by majority of votes.

(b) Two members shall constitute the quorum and when there is a difference of opinion between such two members, the,

- (i) Chairman in case he is one of the Members,
- (ii) Technical Member, where the Chairperson is not one of the two members.

Shall have a casting vote.

Provided that one Member shall constitute the quorum during initial one year from the appointed date.

(c) The order of the Forum shall be communicated to the complainant and Distribution Licensee in writing within 7 days. The licensee shall comply with the decision of the Forum within 30 days of the receipt of the order of the Forum.

7.2 The Forum may also decide any complaint in terms of settlement reached between the parties at any stage of the proceedings before it and in such case, there shall be no right of representation before the Ombudsman against such order of the Forum.

7.3 The Forum may, subject to the Regulations made by the Commission in this regard, award such compensation to the complainants, as it may consider just and appropriate in the circumstances of the case.

7.4 The Forum shall not be bound to follow the procedure prescribed in the Civil Procedure Code 1908(Act 5 of 1908).

7.5 If, after the proceedings conducted under these regulations, the Forum finds that any of the allegations contained in the Complaint are correct, it shall issue an order to the Distribution Licensee directing it to do one or more of the following things, namely-

- (i) return/make adjustment to the complainant of the undue/excess charges paid by the Consumer;
- (ii) remove the defects/deficiencies in the services in question;
- (iii) not to offer and/or withdraw hazardous electrical services; and
- (iv) pass any other order, deemed appropriate in the facts and circumstances of the case.

7.6 Subject to the right of the representation before the Electricity Ombudsman appointed/designated by the Commission under section 42 of the Act, 2003, the Orders of the Forum shall be final and binding on the consumer and the Distribution Licensee.

7.7. Any person may obtain copy of the Orders of the Forum on payment of Rs.10/- per page.”

From a conjoint reading of the various provisions of the Regulations, we are of the considered opinion that the Forum provided under the Regulations has been entrusted with the jurisdiction to settle disputes effectively and in a legal manner. Thus, the grievance of a consumer which is covered under the Regulation 2(n) read with Regulation 2(e) can be looked into by the Forum. It is not correct to say that as the grievances has been defined in a very restrictive manner the present matter cannot be gone into by the Forum. In fact, Clause (iv) of Regulation 2(e) of the Regulations empowers the Forum to adjudicate upon the dispute regarding breach of any obligation under the Act, Electricity Supply Code and/or tariff order also. The present dispute, therefore, can very well be gone into by the Forum.

In the case of **J.M. Baxi**(supra), the Apex Court has held that where recourse to alternative remedy was onerous involving deposit of huge amount and demand itself was barred by limitation, interference by High Court on merits was necessary despite alternative remedy being available.

In the case of **Customs Collector, Bombay vs. Shantilal & Co.**(supra), the Apex Court has held that a remedy by way of an appeal against the order of confiscation and imposition of a large penalty under the Sea Customs Act is not an effective remedy, when no appeal can be filed unless the large penalty imposed upon the petitioner has first been deposited.

The principles laid down by the Apex Court in the cases are not applicable in the present case as neither there is any precondition to deposit the entire amount nor the demand can be said to be barred by limitation.

In the case of **Dr. Bal Krishna Agarwal**(supra), the Apex Court has held that as the question raised is a pure question of law and the writ petition was admitted and remained pending for more than five years and the question raised involved a pure question of law and even if the matter is referred to the Chancellor under Section 68 of the U.P. State University Act, 1973, it is bound to be agitated in the Court, the High Court should not have non-suited the appellant on the ground of availability of an alternative remedy. In the present case we find that all the writ petitions have not been admitted and the objection has been raised at the very first stage itself i.e. at the time of admission of the writ petition, therefore, the principles laid down in the aforesaid case would not be applicable.

In the case of **Whirlpool Corporation** (supra), the Apex Court has held that

alternative remedy would not operate as a bar where the writ petition seeks enforcement of any of the fundamental rights; or where there is violation of principles of natural justice; and where the order or the proceedings are wholly without jurisdiction or the vires of an Act is challenged.

In the case of **Harbanslal Sahnia and another**(supra), the Apex Court has reiterated the aforesaid principles as laid down in Whirlpool Corporation's case.

In the case of **ABL International Ltd.**(supra), the Apex Court has held that in an appropriate case, a writ petition as against a State or an instrumentality of a State arising out of a contractual obligation is maintainable and merely because some disputed questions of fact arise for consideration, same cannot be a ground to refuse to entertain a writ petition in all cases as a matter of rule and a writ petition involving a consequential relief of monetary claim is also maintainable. The Apex Court has further held that the Court has imposed upon itself certain restrictions in exercise of this power. Thus, unless action of the State or its instrumentality is arbitrary and unreasonable so as to violate the constitutional mandate of Article 14 or for other valid and justifiable reasons, this plenary right of the High Court to issue a prerogative writ will not normally be exercised to the exclusion of other remedies available.

In the case of **Sanjana M.Wig**(supra) the Apex Court has held that when an action of the party is dehors the terms and conditions contained in an agreement as also beyond the scope and ambit of the domestic forum created therefore, the writ petition may be held to be maintainable.

In the case of **Popcorn Entertainment**(supra) the Apex Court has reiterated the principles laid down by it in the case of Whirlpool Corporation(supra).

In the case of **Ashok Kumar**(supra), this Court had entertained the writ petition only on the ground that the issues raised are purely legal and involves jurisdiction issue.

In the case of **Gujarat Ambuja Cement Ltd.**(supra), the Apex Court has held that there are two well-recognised exception to the doctrine of exhaustion of statutory remedies. Firstly, proceedings are taken before the forum under a provision of law which is ultra vires and secondly when the impugned order has been made in violation of the principles of natural justice and where the proceeding itself are an abuse of process of law the High Court in an appropriate case can entertain a writ petition.

In the case of **Pradeep Kumar Singh**(supra), a Division Bench of this Court has held that the alternative remedy is not a bar where a writ petition has been filed for enforcement of any fundamental rights, or where there is violation of principles of natural justice; or where the order or the proceedings are wholly without jurisdiction or the vires of an Act is challenged.

We may mention here that the plea of the learned counsel for the petitioners that after abolition of the minimum consumption charges the licensee cannot demand electricity charges for the period the electricity supply has been disconnected as also the defence taken by the licensee that under the tariff order it was entitled to demand 75% of the contracting load or the actual consumption, whichever is higher cannot be lightly brushed aside. It does not relate to question of jurisdiction but interpretation of the provisions of the Tariff which question can more appropriately be gone into by the Forum. Further there is no question of issuing any show cause notice before raising the electricity bills. We may further mention here that while approaching the Forum the consumer is not required to deposit any amount towards disputed bills. It is required to deposit 50% where an interim order is required and not otherwise.

We, therefore, in the interest of justice deem it fit and proper to direct the petitioners to approach the Forum within fifteen days from today by filing a complaint in accordance with the Regulations and if such a complaint is filed the same be decided expeditiously in accordance with law without raising the plea of limitation. The interim orders passed by this Court shall continue to remain in operation till the Forum decides the matter. In view of the fact that we are directing the petitioners to avail alternative remedy of filing a complaint before the Forum, we are not going into the merits of the matter and also the case laws cited by the petitioners.

All the writ petitions stand disposed of.

Dated: 10.4.2012

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